

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX**

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**FRANKLIN DIAZ,**

Plaintiff

- against -

**THE CITY OF NEW YORK,  
DOUGLAS SORIANO (Shield No. 2672),  
P.O. KENNEDY**

Defendants.  
-----X

**Index No.** \_\_\_\_\_  
**Purchased** \_\_\_\_\_  
Plaintiff designates Bronx  
County as the place of trial

The basis of the venue is  
where the tort arose

**SUMMONS**

**TO THE ABOVE NAMED DEFENDANTS:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York  
May 9, 2019

  
**ERIC D. LEVY, ESQ.**  
Attorney for Plaintiff  
930 Grand Concourse, Suite 1e  
Bronx, New York 10451  
(646) 755-8020

Defendant's Address:  
**CORPORATION COUNSEL OF THE  
CITY OF NEW YORK**  
100 Church Street  
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK  
BRONX COUNTY**

-----X  
**FRANKLIN DIAZ,**

**Plaintiff,****Index No.  
Complaint****- against -****THE CITY OF NEW YORK,  
DOUGLAS SORIANO (Shield No. 2672),  
P.O. KENNEDY****Defendants.**

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Plaintiff FRANKLIN DIAZ, by his attorney ERIC D. LEVY, ESQ., principal,  
complaining of the Defendants, respectfully shows to this Court and alleges the following  
upon information and belief:

**PARTIES**

1. At all times hereinafter mentioned, Plaintiff FRANKLIN DIAZ ("MR. DIAZ") was a resident of Kings County, City and State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, Defendants DOUGLAS SORIANO and P.O. KENNEDY, ("SORIANO AND KENNEDY") were and still are police officers employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

4. On and prior to March 5, 2016, SORIANO was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

5. On and prior to March 5, 2016, KENNEDY was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

6. The actions of SORIANO described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

7. The actions of KENNEDY described herein were performed within the scope of her employment and authority and while she acted as an agent, servant and employee of Defendants CITY and NYPD.

#### BACKGROUND

8. On or about March 5, 2016, SORIANO AND KENNEDY, acting as agent, servant and employee of Defendant CITY and NYPD, without just cause or provocation, intentionally and falsely accused MR. DIAZ of having committed the crime of Criminal Possession of a Weapon in the Second Degree and other related charges.

9. On or about March 5, 2016, Defendants, their agents, servants and/or employees, intentionally placed MR. DIAZ under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

10. On or about March 6, 2016, a felony complaint was issued at the directive of Defendants, under docket No. 2016BX010052, and a criminal action against MR. DIAZ was commenced.

11. After his arrest on March 5, 2016, MR. DIAZ was detained by Defendants until he was released after posting bail in the amount of \$2,500.00 on or about March 8, 2016.

12. As a result of the treatment of MR. DIAZ by the Defendants, MR. DIAZ was denied liberty by being falsely arrested and imprisoned for approximately three (3) days.

13. MR. DIAZ suffered emotional injuries due to the conduct of the Defendants. As a result of being falsely arrested and detained for three (3) days, MR. DIAZ suffered humiliation, fear for his safety and other emotional distress; on July 16, 2018, all charges against MR. DIAZ were dismissed and the records sealed.

#### PROCEDURAL POSTURE

14. On May 9, 2019, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

15. More than thirty days have elapsed since service of said notice, and Defendant CITY has failed to pay or adjust the claim.

16. This action has been commenced within one year and ninety days after the cause of actions of Plaintiff accrued; Plaintiff has duly complied with all conditions precedent to the commencement of this action.

#### FIRST CAUSE OF ACTION: FALSE ARREST

17. Paragraphs 1-16 are incorporated by reference as fully set forth herein.

18. On March 5, 2016, at approximately 4:30 a.m. while inside a livery cab on the corner of Olmstead Ave. and Bruckner Blvd, in Bronx County, Defendant SORIANO and KENNEDY wrongfully touched, grabbed, handcuffed and seized MR. DIAZ, in an excessive manner about his person, causing MR. DIAZ physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiff, denied MR. DIAZ due process, and therefore his arrest was not based on probable cause; he also was aware of his arrest and confinement as described in paragraphs 1-17, and he did not consent to that arrest or confinement, nor was it privileged by law.

19. As a result of being falsely arrested by the Defendants, MR. DIAZ sustained multiple injuries. He was denied liberty and the ability to enjoy life for approximately three (3) days. He also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

20. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.

21. The Defendants, their agents, servants and employees, arrested and confined MR. DIAZ, as described in paragraphs 1-20, and intended to confine MR. DIAZ. MR. DIAZ was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

22. As a result of being falsely imprisoned by the Defendants, MR. DIAZ

sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

23. Paragraphs 1-22 are incorporated by reference as though fully set forth herein.

24. In arresting MR. DIAZ, defendants SORIANO AND KENNEDY, acting in their capacity as an agent, servant and employee of Defendants CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

25. In arresting and prosecuting MR. DIAZ, defendants SORIANO AND KENNEDY, acting in their capacity as the agent, servant and employee of Defendants CITY and NYPD, sought either a detriment to MR. DIAZ or a collateral advantage to the Defendants that is outside of the legitimate ends of making an arrest; specifically Defendants arrested MR. DIAZ for the purpose of inflating crime statistics and for the opportunity to earn over-time pay.

26. As a result of the abuse of process by the Defendants, MR. DIAZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

27. Paragraphs 1-26 are incorporated by reference as though fully set forth herein.

28. On or about March 5, 2016, and from that time until July 16, 2018, when Plaintiff's case was dismissed upon the People's application, the Defendants deliberately and maliciously prosecuted Plaintiff, an innocent man, without any probable cause whatsoever, by filing or causing a felony complaint and indictment to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing Plaintiff of violations of the criminal laws of the State of New York.

29. The Defendants, their agents, servants or employees failed to take reasonable steps to stop the prosecution of Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's Office to induce prosecution of Plaintiff, specifically SORIANO testified falsely, while under oath about the circumstances, both leading up to and during the car stop on March 5, 2016.

30. The commencement of these criminal proceedings under Docket No. 2016BX010052 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

31. As a result of being maliciously prosecuted by the Defendants, MR. DIAZ was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

FIFTH CAUSE OF ACTION: NEGLIGENCE

32 Paragraphs 1-31 are incorporated by reference as though fully set forth herein.

33. At all times hereinafter mentioned, the aforesaid false arrest, false



imprisonment, abuse of process and malicious prosecution were caused solely by the negligence of the Defendants, their agents, servants and/or employees.

34. As a result of the negligence of the Defendants, MR. DIAZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SIXTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

35. Paragraphs 1-34 are incorporated by reference as though fully set forth herein.

36. Defendants CITY and NYPD, through its agents, servants and employees, had the responsibility for supervising, disciplining, evaluating and training OF BOTH SORIANO AND KENNEDY, as well as all of the other NYPD officers involved in this matter.

37. Defendants CITY and NYPD have grossly failed to train and properly supervise its police officers, particularly the detectives and police officers involved herein, regarding the law of arrest, search and seizure.

38. Defendants CITY and NYPD were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.

39. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize Plaintiff.

40. Defendants CITY and NYPD had the responsibility for supervising,



disciplining, evaluating and training the police officers involved herein, including SORIANO AND KENNEDY.

41. Defendants CITY and NYPD were negligent in supervising, disciplining, evaluating and training the police officers involved herein, including SORIANO AND KENNEDY.

42. As a result of the negligence of Defendants CITY, NYPD, SORIANO AND KENNEDY, MR. DIAZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SEVENTH CAUSE OF ACTION: NEGLIGENT HIRING

43. Paragraphs 1-42 are incorporated by reference as though fully set forth herein.

44. Defendants CITY and NYPD had the responsibility for hiring both SORIANO AND KENNEDY.

45. Defendants CITY and NYPD were negligent in hiring both SORIANO AND KENNEDY.

46. As a result of the negligence of the Defendants, MR. DIAZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

EIGHTH CAUSE OF ACTION ASSAULT AND BATTERY

47. Paragraphs 1-46 are incorporated by reference as though fully set forth herein.

48. On March 5, 2016, at approximately 12:00 p.m. inside 3016 Webster Ave. in Bronx County, Defendants along with other New York City police officers, wrongfully touched, grabbed, pushed, handcuffed and seized MR. DIAZ, in an excessive manner about his person, causing MR. DIAZ physical pain and mental suffering.

49. That on or about March 5, 2016, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff MR. DIAZ was intentionally touched, grabbed, pushed, assaulted, violated, humiliated and handcuffed by SORIANO, along with other New York City police officers who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

50. That on or about March 5, 2016, along with other New York City police officers their agents, servants and employees, acting as agents and on behalf of the CITY and NYPD within the scope of their employment, did intentionally, willfully and maliciously assault and batter MR. DIAZ, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to MR. DIAZ and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner intentionally touched the plaintiff and/or made offensive bodily contact to MR. DIAZ and caused such battery in and about his chest, body and limbs. At no time did MR. DIAZ consent to the aforesaid assault and battery.

51. While not conceding that said arrest was lawful or made upon probable cause, the aforesaid intentional assault and battery during the arrest was excessive. The excessive force used, including but not limited to the pushing, shoving and grabbing of

MR. DIAZ, was an assault and battery beyond that which was necessary to make the arrest.

52. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, in particular SORIANO, along with other New York City police officers acting within the scope of their employment and authority and without any probable or reasonable cause, MR. DIAZ suffered bodily injury in and about his body and limbs and suffered conscious pain and suffering, and that he was otherwise damaged.

NINTH CAUSE OF ACTION

53. Paragraphs 1-52 are incorporated by reference as though fully set forth herein.

54. Defendant SORIANO was at all times relevant, a duly appointed and acting officer of the City of New York Police Department.

55. Defendant KENNEDY was at all times relevant, a duly appointed and acting officer of the City of New York Police Department.

56. At all times mentioned herein, BOTH SORIANO AND KENNEDY were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

57. Plaintiff is and at all times relevant herein, a citizen of the United States and brings this cause of action pursuant to 42 United States Code, section 1983 and 42 United States Code, section 1988.

58. Defendant CITY is a municipality duly incorporated under the laws of the State of New York.

59. On or about March 5, 2016 the Defendants, armed police, while effectuating the seizure of the Plaintiff, did search, seize, assault and grab the person of Plaintiff without a court authorized arrest warrant. They did physically seize the person of Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause.

60. The above actions of the Defendants resulted in Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from the use of excessive force during the arrest process.

61. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United State Constitution.

62. The direct and proximate result of the Defendants' acts are that Plaintiff has

suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

**WHEREFORE**, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated:           Bronx, New York  
                  May 9, 2019

Yours, etc.,

  
\_\_\_\_\_  
**ERIC D. LEVY, ESQ.**

Attorney for Plaintiff  
930 Grand Concourse, Suite 1E  
Bronx, NY 10451  
646-755-8020

CERTIFICATION

I, ERIC D. LEVY, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).

  
ERIC D. LEVY, ESQ.

INDIVIDUAL VERIFICATION

State of New York, County of The Bronx ss.:

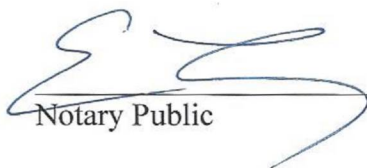
**FRANKLIN DIAZ**

*being duly sworn, deposes and says that deponent is  
the claimant in the within action; that she has read the  
foregoing Summons and Verified complaint  
and knows the contents thereof,*

*and that same is true to deponent's own knowledge,  
except as to the matters therein stated to be alleged  
upon information and belief and that as to those matters  
deponent believes it to be true.*

X   
FRANKLIN DIAZ

Sworn to before me, this 9<sup>th</sup> day of May, 2019.

  
Notary Public

ERIC D. LEVY  
Notary Public, State of New York  
Qualified in Kings County  
Reg. #02LE6258970  
My Comm. Exp. April 9, 2020